Shelly Batra vs State on 25 May, 2012

Author: M.L. Mehta

Bench: M.L. Mehta

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*              THE HIGH COURT OF DELHI AT NEW DELHI

+                           Bail APPLN. 732/2012

                                                  Date of Decision: 25.05.2012

SHELLY BATRA                                                      ..... Petitioner

                            Through: Mr. Parag Chawla and Mr. Saurabh
                                     Shokeen, Advocates.

                                    Versus

STATE                                                  ..... Respondent
                            Through:Mr. M.N. Dudeja, APP for state.

CORAM:
HON'BLE MR. JUSTICE M.L. MEHTA

M.L. MEHTA, J. (Oral)
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Crl.M.A.No. 6680/2012 (Exemption) Exemption allowed, subject to all just exceptions.

Application stands disposed of.

This is an application for anticipatory bail in FIR No. 321/2011 registered by Crime Branch, Delhi.

The petitioner is associated with M/s Dream World, a firm dealing in sale and purchase of new as well as old Maruti cars. The FIR came to be registered on the complaint of one Suresh Rajpal leveling allegations that the petitioner in collusion with Thakur Karamvir Singh and his wife Ms. Nisha was involved in cheating the public at large by alluring them to purchase cars through them. The complainant made a complaint that Thakur Karamvir Singh had represented him that his company was offering lucrative deals on second hand cars. Allured by his representations, he fell into his trap and paid him Rs.13,55,000/- by way of cheque bearing No. 546771 in favour of their company. Thereafter, he was made to pay an additional amount of Rs.1,00,000/- as the cost of white coloured model. However, neither they delivered the car, nor returned the money despite his various visits. Ultimately, he started threatening him with dire consequences. It was alleged that all the aforesaid accused persons in conspiracy with each other have played a fraud upon him and committed a breach of trust and cheated him.

During investigation, Thakur Karamvir Singh was apprehended and it came to be known that they have winded up their business and also left their office and residential addresses. It was also alleged that they have cheated large number of persons by this modus operandi.

The learned counsel appearing for petitioner submitted that the petitioner was not at all liable or responsible for the acts of Thakur Karamvir Singh and that neither she had taken the money from the complainant, nor she was the beneficiary of the transaction.

It was not disputed that the petitioner was an associate of Thakur Karamvir Singh and his wife Nisha Singh in their company M/s Dream World and that this company was engaged in sale and purchase of Maruti Cars and also that the aforesaid sums were taken from the complainant in the account of the company. This seems to be well designed modus operandi of the petitioner and other co- accused persons. No doubt that in the present case it was Thakur Karamvir Singh who had misrepresented and allured the complainant to part with huge amount of money amounting to Rs.14,55,000/-, but the fact remains that this all appears to be in conspiracy of all the accused persons. This seems to be modus operandi with different persons of the public. The money was deposited in the account of their firm M/s Dream World. The investigation revealed that the petitioner is involved in day-to-day affairs of this company and is also wanted in two more cases, namely, FIR No. 331/2011 P.S. Okhla Industrial Area and FIR No. 256/2011 P.S. Malviya Nagar and further that she was a proclaimed offender in the latter case. From the bank record, it was also revealed that they have been doing this business for the last three years and have done business of several crores. Having regard to the entire factual matrix of the case, the prima facie the offence seems to have been committed by all the accused persons in conspiracy being with each other. Keeping in view the serious nature of the offence, the petitioner cannot be granted anticipatory bail. Dismissed.

M.L. MEHTA, J MAY 25, 2012/pkv